

abandoned by the purchaser's counsel as untenable. And the late Vice-Chancellor of England, in a subsequent case, observed: "I have always understood, ever since the point was decided in *Hawkins v. Kemp*, or rather was, as the judges said in that case, properly abandoned by the defendant's counsel as not capable of being contended for, that where two or more persons are appointed trustees, and all [*607] of * them, except one, renounce, the trust may be executed by that one" (a).

Adams v. Taunton.—*Adams v. Taunton* (b) is a direct decision by Sir J. Leach to the same effect. A testator had devised his estates to A. and B. upon trust to sell and apply the proceeds amongst his children, and declared that the receipts of the said A. and B. should be sufficient discharges. A. renounced, and Sir J. Leach, after having taken time to consult the authorities, said, "It being now settled that a devise to A., B., and C. upon trust is a good devise to such of the three as accept the trust, it follows by necessary construction that by the receipt of the trustees is to be intended the receipt of those who accept the trust" (c).

2. **Powers to "trustees" or "executors."**—If the power be not given to the trustees by *name*, but to the "trustees" or "executors"; it is *clear, à fortiori*, that if one disclaim the acting trustees or executors may exercise the power (d).

[3. By the Conveyancing Act, 1882, sect. 6, which applies to powers created by instruments coming into operation either before or after the commencement of the Act, "a person to whom any power, whether coupled with an interest or not, is given, may by deed disclaim the power; and after disclaimer shall not be capable of exercising or joining in the exercise of the power. On such disclaimer the power may be exercised by the other or others, or the survivors or

(a) *Cooke v. Crawford*, 13 Sim. 96.

(b) 5 Mad. 435; and see *Bayly v. Cumming*, 10 Ir. Eq. Rep. 410; *Cooke v. Crawford*, 13 Sim. 96; *Sands v. Nugee*, 8 Sim. 130.

(c) From his Honour's words, "the receipts of the trustees," it might be thought the power had been given, not to A. and B. by name, but

to "the trustees": the R. L. has been consulted, and it appears as stated in the report, that the power was given to "the said A. and B."

(d) *Worthington v. Evans*, 1 S. & S. 165; *Boyce v. Corbally*, Ll. & G. t. Plunket, 102; and see *Clarke v. Parker*, 19 Ves. 1; *White v. M'Dermott*, 7 I. R. C. L. 1.